

STATE OF NEW YORK

2193--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 15, 2025

Introduced by M. of A. MAGNARELLI, DE LOS SANTOS -- read once and referred to the Committee on Transportation -- reported and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to making technical corrections to the adjudication of certain traffic violations; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 10, 11, 12, 13, 14, 15 and 16 of section 237
2 of the vehicle and traffic law are REPEALED and a new subdivision 10 is
3 added to read as follows:

4 10. (a) To adjudicate the liability of owners for violations of subdivi-
5 vision (d) of section eleven hundred eleven of this chapter imposed
6 pursuant to a local law or ordinance imposing monetary liability on the
7 owner of a vehicle for failure of an operator thereof to comply with
8 traffic-control indications through the installation and operation of
9 traffic-control signal photo violation-monitoring systems, in accordance
10 with article twenty-four of this chapter; (b) to adjudicate the liabil-
11 ity of owners for violations of subdivision (b), (c), (d), (f) or (g) of
12 section eleven hundred eighty of this chapter imposed pursuant to a
13 demonstration program imposing monetary liability on the owner of a
14 vehicle for failure of an operator thereof to comply with such posted
15 maximum speed limits through the installation and operation of photo
16 speed violation monitoring systems, in accordance with article thirty of
17 this chapter; (c) to adjudicate the liability of owners for violations
18 of bus lane restrictions as defined by article twenty-four of this chap-
19 ter imposed pursuant to a bus rapid transit program imposing monetary
20 liability on the owner of a vehicle for failure of an operator thereof
21 to comply with such bus lane restrictions through the installation and
22 operation of bus lane photo devices, in accordance with article twenty-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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four of this chapter; (d) to adjudicate the liability of owners for violations of toll collection regulations imposed by certain public authorities pursuant to the law authorizing such public authorities to impose monetary liability on the owner of a vehicle for failure of an operator thereof to comply with toll collection regulations of such public authorities through the installation and operation of photo-monitoring systems, in accordance with the provisions of section twenty-nine hundred eighty-five of the public authorities law and sections sixteen-a, sixteen-b and sixteen-c of chapter seven hundred seventy-four of the laws of nineteen hundred fifty; (e) to adjudicate the liability of owners for violations of section eleven hundred seventy-four of this chapter when meeting a school bus marked and equipped as provided in subdivisions twenty and twenty-one-c of section three hundred seventy-five of this chapter imposed pursuant to a local law or ordinance imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with school bus red visual signals through the installation and operation of school bus photo violation monitoring systems, in accordance with article twenty-nine of this chapter; (f) to adjudicate the liability of owners for violations of section three hundred eighty-five of this chapter and the rules of the applicable covered agency or covered authority as such terms are defined in article ten of this chapter in relation to gross vehicle weight and/or axle weight violations imposed pursuant to a weigh in motion demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such gross vehicle weight and/or axle weight restrictions through the installation and operation of weigh in motion violation monitoring systems, in accordance with article ten of this chapter; (g) to adjudicate the liability of owners for violations of subdivision (b), (d), (f) or (g) of section eleven hundred eighty of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such posted maximum speed limits within a highway construction or maintenance work area through the installation and operation of photo speed violation monitoring systems, in accordance with article thirty of this chapter; and (h) to adjudicate the liability of owners for violations of bus operation-related traffic regulations as defined by article twenty-four of this chapter imposed pursuant to a demonstration program imposing monetary liability on the owner of a vehicle for failure of an operator thereof to comply with such bus operation-related traffic regulations through the installation and operation of bus operation-related photo devices, in accordance with article twenty-four of this chapter.

§ 2. This act shall take effect immediately.